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Man 'had sex when infected with AIDS'

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A man who is HIV positive deliberately had unprotected sex with a man he met at a Kings Cross sex shop, a Sydney court was told yesterday.

Chad John Ross, 33, a Lord Howe Island resident, appeared at Parramatta Bail Court yesterday charged with one count of attempt to cause contraction of a grievous bodily disease.

It is one of only a few charges laid under new legislation that protects the public from HIV carriers knowingly having unprotected sex when at risk of infecting another.
Police allege Ross met the victim early on Friday morning in Kings Cross before they went to the alleged victim's Waverley address.

There, police allege, Ross told the victim he did not carry any sexually transmittable diseases before they had unprotected sex.
Later, while the alleged victim slept, police said Ross stole a mobile phone, laptop computer, cash and other goods from the property.

He was arrested a short time later in the grounds of nearby Waverley College after a security guard noticed he was acting suspiciously and called the police.

Ross was then detained for six hours by police while he and the alleged victim underwent forensic examination.
Ross's Legal Aid solicitor told the court he had contracted HIV after being the victim of a sexual assault.

In his statement to police, Ross said he had told the alleged victim he was HIV positive before they had sex - a claim the alleged victim denies.
The alleged victim is undergoing medical treatment and tests to determine whether or

not he has contracted the virus.

The virus can lie dormant for three months.

Ross was granted bail but was unable to post it. He was remanded in custory to appear at Waverley Local Court tomorrow.